

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2025CUOE040122: KIRSTIE COLLERA vs CONEJO VALLEY UNIFIED SCHOOL
DISTRICT**

**09/03/2026 in Department 21
Motion for Summary Judgment**

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant Conejo Valley Unified School District’s Motion for Summary Judgment or, in the Alternative, Summary Adjudication of Issues.

Tentative Ruling:

Defendant’s motion for summary judgment is DENIED.

Defendant’s motion for summary adjudication is GRANTED as to the first, fourth, and fifth causes of action, and DENIED as to the second and third causes of action.

Counsel for Defendant is to give notice within two (2) court days.

Discussion:

A. The Material Facts

Material facts are those facts which are critical elements of a cause of action: they define the cause of action in the circumstances of the case; and they make a difference in the ultimate disposition. (See CRC 3.1350(a); *Carlsen v. Koivumaki* (2014) 227 Cal.App.4th 879, 884.) All facts material to the disposition of the motion, and considered to be undisputed (ie, without substantial controversy) by the moving party, must be set forth plainly and concisely in the separate statement, following by a reference to the supporting evidence. (CCP §437c(b)(1), CRC 3.1350; see *Reeves v. Safeway Stores, Inc.* (2004) 121 Cal.App.4th 95, 105-106.) The separate statement is an indispensable part of the process “because it plainly identifies factual issues and allows the trial court to determine whether a trial is required to establish those facts

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and resolve the dispute.” (*Champlin/GEI Wind Holdings, LLC v. Avery* (2023) 92 Cal.App.5th 218, 226.) Separate statements are supposed to provide “a convenient and expeditious vehicle permitting the trial court to hone in on the truly disputed facts,” not abused by lawyers to torment their adversaries (or the court). (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252.) In fact, trial courts have the inherent power to strike facts, or even the entire separate statement, if it fails to include only undisputed material facts in plain and concise verbiage. (*Beltran v. Hard Rock Hotel Licensing, Inc.* (2023) 97 Cal.App.5th 865, 875-876; *Pereda v. Atos Jiu Jitsu LLC* (2022) 85 Cal.App.5th 759, 773.) Simply put, the separate statement must be formulated so as to aid in an orderly determination of the motion, rather than to impede that effort.

The Undisputed and Established Material Facts

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| ☞ UMF 1-8 | (Undisputed) |
| ☞ UMF 5 | (Plaintiff was temporarily totally disabled for two years) |
| ☞ UMF 6 | (Plaintiff was allowed to be on leave) |
| ☞ UMF 9 | (Parties engaged in interactive process. The date only is disputed.) |
| ☞ UMF 10 | (Plaintiff’s was precluded from occasional squatting, climbing, or kneeling and limited to 6 hours of weightbearing activities per 8-hour shift) |
| ☞ UMF 11 | (Plaintiff unable to continue doing Paraeducator I job) |
| ☞ UMF 14, 15 | (District concluded it could not accommodate and gave a list of positions) |
| ☞ UMF 17 | (Plaintiff’s leave was exhausted as of May 31, 2024) |
| ☞ UMF 18 | (Plaintiff was placed on 39-month reemployment list) |

The Disputed and Not Established Material Facts

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| ☞ UMF 12 | (Only jobs available were childcare assistant, child nutrition and grounds) |
| ☞ UMF 13 | (All open positions had physical requirements plaintiff could not perform) |
| ☞ UMF 16 | (All open positions had physical demands unsuitable for plaintiff) |

All remaining UMF’s not mentioned above are either undisputed or immaterial to the Court’s analysis and ruling on this motion.

CRC 3.1350(f)(3) permits the opposing party to submit “additional material facts” which the proposing party (in this case plaintiff) “contends are disputed.” (CCP §437c(b)(3) [emphasis added] in accord, *Security Pacific Nat. Bank v. Bradley* (1992) 4 Cal.App.4th 89, 94.) Plaintiff offers thirty-four additional facts without specifying that those facts are “disputed.” Most of the proposed additional facts are undisputed, and many are not material. The Court addresses the material additional facts below.

The Additional Undisputed and Established Material Facts

- #40 (Defendant gave Plaintiff a list of employment opportunities)
- #41 (The list advertised a clerical substitute position)
- #44 (There was no description or comparison of that position's essential functions and qualifications)

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- #47-49 (Plaintiff can perform the essential functions of the clerical substitute job)
- #51 (Plaintiff asked about a substitute teaching position)
- #52 (Plaintiff understood Defendant to believe substitute teaching was beyond her stated physical limitations)
- #53-54 (Defendant was unaware that Plaintiff passed the CBEST)
- #56 (Plaintiff's substitute teaching permit became valid 4-days after the interactive meeting)
- #57-58 (Plaintiff can, and does, perform the duties of substitute teacher for another district without issue)

B. Evidentiary Objections

On a motion for summary judgment, the trial court must consider all of the evidence submitted by the parties *except* that to which objections have been made and sustained. (*Hernandez v. Hillsides, Inc.* (2009) 47 Cal.4th 272, 281.) A party who wishes to exclude evidence from consideration must “quote or set forth the objectionable statement or material [and] state the grounds for each objection to that statement.” (CRC 3.1354(b).) It is incumbent upon the party objecting to make clear the specific ground of the objection, and not rely on boilerplate generalities. (See *Cole v. Town of Los Gatos* (2012) 205 Cal.App.4th 749, 764.) Assuming objections are made in the proper format, the trial court need only rule on those evidentiary objections that it deems material to disposition of the motion. (CCP §437c(q).) Although blanket rulings are frowned upon (*Lynch v. Peter & Assocs., Engineers, Geologists, Surveyors, Inc.* (2024) 104 Cal.App.5th 1181, 1199), detailed precision addressing every objection is not required. (See *Marin v. Department of Transp.* (2023) 88 Cal.App.5th 529, 536; *Morgan v. Wet Seal, Inc.* (2012) 210 Cal.App.4th 1341, 1370.)

Plaintiff lodged four objections to declaration filed in support of the motion. The objections to Para 6 and 7 in the declaration of Marina Mihalevsky are **overruled**. Her impression of the available positions, and Plaintiff's limitations, and sufficiently supported by her personal experience as the HR Director for the district. The objection to Para 3 in the declaration of Mia Nelson is also **overruled**. Ms. Nelson is able to opine regarding the medical records received from Plaintiff given her role as Benefits Specialist, and the inference made by Plaintiff is not supported by a neutral read of the declaration. The final objection, one blended as to the declaration of Shauna Ashmore and Marina Mihalevsky regarding the absence of further inquiries from Plaintiff, is **overruled**. Both are in a position to opine as to whether Plaintiff affirmatively sought other positions, and plaintiff does not dispute having not done so.

Objections 1-4 are OVERRULED.

Defendant lodged twenty-six objections: seven to the declaration of plaintiff's counsel; twelve to the declaration of Plaintiff; and seven to proposed exhibits. The objections made to the attorney declaration are limited to the attorney's attempt to authenticate various exhibits submitted with the opposition papers. “Authentication of a writing is required before it may be received in evidence.” (Evid. Code §1401(a).) This means evidence sufficient to sustain a finding “that the document is what it purports to be.” (*Jazayeri v. Mao* (2009) 174 Cal.App.4th 301, 321.) “As with any fact, the authenticity of a document can be established by circumstantial evidence.”

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(*Hooked Media Group, Inc. v. Apple, Inc.* (2020) 55 Cal.App.5th 323, 338.) Although counsel may not have personal knowledge regarding the accuracy of the information contained in the documents, there is no genuine dispute as to the authenticity of the documents themselves. (See *DiCola v. White Brothers Performance Products, Inc.* (2008) 158 Cal.App.4th 666, 681.) These objections are, for present purposes only, **overruled**. Similarly, the objections directed at the exhibits themselves are **overruled** for the same reasons. There is no genuine dispute as to the authenticity of the documents – and the defense references quite a few of them on its own. As for the declaration of Plaintiff, some of the objections are indeed well-taken. For example, her interpretation and understanding of medical records (Nos. 8-10) are not admissible or relevant. Those objections are **sustained**. However, her lay understanding of her ability to perform a clerical or substitute job (Nos. 11 and 16) is an opinion of her own qualifications, which is admissible. Plaintiff can also testify to her recollection of what was discussed at a meeting and her own ability to perform activities (Nos. 12 - 14). The balance of the facts relate to her ability to actually do the job of substitute teaching – which defendant objects to on relevance grounds. Those objections are also **overruled**. Plaintiff's ability to do a job she believed was available during the time of interactive process is admissible and highly relevant.

Objections 8-10 are SUSTAINED; the rest are OVERRULED.

C. Defendant's Request for Judicial Notice

Defendant's request for judicial notice of relevant court records, namely Plaintiff's First Amended Complaint filed June 6, 2025, is GRANTED. (See Evid. Code, § 452, subd. (d).)

D. Summary Adjudication Overview

The purpose of the law of summary adjudication is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether trial is in fact necessary. A defendant moving for summary adjudication may prevail on the motion in one of three ways: (1) by affirmatively negating at least one of plaintiff's essential elements; (2) by showing that plaintiff does not have, and cannot get, evidence to establish an essential element after fully exploring plaintiff's case through discovery; or (3) by presenting evidence as to each element of an affirmative defense upon which defendant bears the burden of proof at trial. Once the defendant's initial burden is met, the burden shifts to the plaintiff to show by substantial evidence that a triable issue of material fact exists as to the claim or defense. Contrary to popular folklore, summary adjudication is no longer a disfavored remedy; instead, it is "now seen as a particularly suitable means to test the sufficiency of the plaintiff's case." (*Perry v. Bakewell Hawthorne, LLC* (2017) 2 Cal.5th 536, 542; *Alameda Health System v. Alameda County Employees' Retirement Assn.* (2024) 100 Cal.App.5th 1159, 1174.)

Each of Plaintiff's five causes of action rise and fall on the same basic premise, to wit: was there some job available in the school district that Plaintiff could do once she became permanent and stationary? The question is addressed in competing obligations.

First, there is Education Code §45192(g). Pursuant thereto, in pertinent part, "when all available leaves of absence have been exhausted and if the employee is not medically able to

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assume the duties of her position, the employee shall, if not placed in another position, be placed on a reemployment list for a period of 39 months. When available, during the 39-month period, the employee shall be employed in a vacant position in the class of the employee's previous assignment over all other available candidates.” Stated more succinctly, if the employee cannot return to her previous position, and is not placed into a different position, the employee is given a 3+ year right to jump the employment line. As explained in *Trotter v. Los Angeles County Board of Education* (1985) 167 Cal.App.3d 891 (at 898), “the purpose of section 45192 is to allow an employing agency to hire persons to fill positions vacated by medically-disabled employees and then to allow the laid off employee preferential treatment in terms of reemployment. We see no violation of any cognizable property interest as a result of appellant's placement on said list.” Because placement on the list is mandatory and ministerial, it cannot – as a matter of law – be an adverse employment action motivated by animus or discrimination.

Second, there is 2 CCR §§ 11068(d) and 11069(c)(7). Pursuant thereto, in pertinent part, “an employer shall ascertain through the interactive process suitable alternate, vacant positions and offer an employee such positions, for which the employee is qualified, if the employee can no longer perform the essential functions of her own position even with accommodation ... In consultation with the employee, the employer shall identify potential accommodations and assess the effectiveness each would have in enabling the employee to perform the essential function of the position held or desired or to enjoy equivalent benefits and privileges of employment compared to non-disabled employees ... If there are no funded, vacant comparable positions for which the individual is qualified with or without reasonable accommodation, an employer may reassign an individual to a lower graded or lower paid position.” These regulations give structure to Defendant’s obligation to find Plaintiff “another position” before relegating her to the 39-month reemployment list (which some view as purgatory). However, the Plaintiff herself has certain obligations too: “if reassignment to an alternate position is considered as an accommodation, the employee shall provide the employer information about her educational qualifications and work experience that may help the employer find a suitable alternative position.” (2 CCR §11069(d)(2).)

In summary, being placed on the 39-month reemployment list is not actionable; it is the failure to find another position first which is potentially actionable. According to Plaintiff, she was willing to accept anything: “part-time, on-call, substitute, or lower-paid suitable work.” (See UMF 49-50.) Apparently there was a vacant “on-call clerical substitute” position available at the time, but for reasons not immediately clear, Plaintiff was not placed here.

1. 1st Cause of Action for Disability Discrimination – MSA Granted

The moving party has met its initial burden of proof by negating one of the essential elements, and Plaintiff has failed to demonstrate the existence of a triable fact.

Under FEHA, the plaintiff must establish that (1) she was a member of a protected class, (2) she was qualified for the position he sought or was performing competently in the position she held, (3) she suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive. (*Guz v. Bechtel Nat. Ins.* (2000) 24 Cal.4th 317, 355.) To prevail on summary judgment, Defendant is required

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to show either that (1) Plaintiff could not establish one of the aforementioned four elements or (2) there was a legitimate reason for its decision not to offer a particular position to Plaintiff. (See *Avila v. Cont'l Airlines, Inc.* (2008) 165 Cal.App.4th 1237, 1247.) Plaintiff must produce substantial responsive evidence that Defendant's showing was untrue or pretextual.

As indicated, being placed on the 39-month reemployment list is not an adverse employment action. To qualify as *adverse*, the employment action must materially affect the terms, conditions, or privileges of employment, including actions that are reasonably likely to adversely and materially affect an employee's job performance or opportunity for advancement. Minor actions, and those which are merely contrary to the employee's preferences, generally do not qualify. (See *Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1054; see also *Alexander v. Community Hospital of Long Beach* (2020) 46 Cal.App.5th 238, 263; *Doe v. Department of Corrections & Rehabilitation* (2019) 43 Cal.App.5th 721, 734; *Simers v. Los Angeles Times Communications, LLC* (2018) 18 Cal.App.5th 1248, 1280-1281.) The 39-month reemployment list is a *benefit* to the employee by giving him or her preferential consideration for any vacant position that the disabled employee can perform. (While it could in theory become adverse if the employer thereafter actively hides potential job positions from the employee, but there is no suggestion of that taking place here.) Simply put, Plaintiff has not shown that any alleged adverse or discriminatory action by Defendant, if any, was on account of her disability.

2. 2nd Cause of Action for Failure to Provide Reasonable Accommodation – MSA Denied

The moving party has met its initial burden of proof by negating one of the essential elements, but Plaintiff has demonstrated the existence of a triable fact.

Under FEHA, employers have an affirmative duty to provide a disabled employee with reasonable accommodations unless doing so would produce undue hardship to the employer's operation. A reasonable accommodation is defined as a modification or adjustment to the workplace that enables the employee to perform the essential functions of the job, and may include job restructuring, modified work duties/schedules, or – as is alleged here – reassignment to an existing, albeit vacant, position. (See 2 CCR §11068(a); in accord, *Shirvanyan v. Los Angeles Community College Dist.* (2020) 59 Cal.App.5th 82, 88-89; *Cornell v. Berkeley Tennis Club* (2017) 18 Cal.App.5th 908, 926; *Soria v. Univision Radio Los Angeles, Inc.* (2016) 5 Cal.App.5th 570, 598.)

Defendant insists that it accommodated Plaintiff by permitting her to be on leave for two years despite being “totally” disabled. Plaintiff does not dispute that Defendant reasonably accommodated her in the first instance by allowing her to be on leave for a period of two years. (See UMF 6 and *Hanson v. Lucky Stores, Inc.* (1999) 74 Cal.App.4th 215, 226-227.) That is not the issue. As set forth in the operative pleading, “Plaintiff is qualified for and has been willing and able to perform the duties and functions of an employment position with CVUSD, with or without accommodation. However, Defendant CVUSD has instead placed Plaintiff on the 39-month reemployment list and has refused, and continues to refuse, to reinstate Plaintiff to an employment position.” (FAC Para 32.) In other words, the claim rests solely on the degree

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of accommodation *after* she was upgraded from “totally” disabled (unable to work) to able to work with some limitations. (See UMF 9, 12-13, 16; ADMF 34-35.)

Defendant insists that the duty to accommodate only covers equivalent jobs, and that no equivalent jobs were vacant and available. Defendant goes into considerable detail explaining the differences between Plaintiff’s former position (paraprofessional 1) and proposed new position (clerical or teaching substitute). According to Defendant:

“Employees who are properly hired as short-term or substitute employees and are employed and paid for less than 75 percent of the school year, are excluded from the classified service. An on-call Clerical Substitute position is still a substitute used to fill the position of a regular employee—it is categorically different from a part-time classified Paraprofessional 1 position. A substitute employee could work for zero hours in the month or could work for 160 hours. Such a role is not the same as even a part-time classified paraprofessional position, which, like other classified positions would be employed for a school year, have a set schedule, hours, pay, due process rights related to discipline and dismissal, sick leave, vacation days, and other benefits. In other words, in the California school system, substitute employees are different in kind and treated differently under the law than classified employees.”

The premise is flawed. There is no law absolving an employer from offering to a disabled employee a “lesser” position if in fact it is the only accommodation available. As set forth in the regulations, “if there are no funded, vacant comparable positions for which the individual is qualified, an employer may reassign an individual to a lower graded or lower paid position [and] an employer may offer, and an employee may choose to accept or reject, a temporary assignment during the interactive process.” (2 CCR §11068(d)(2)-(3).)

Defendant’s reliance on *Raine v. City of Burbank* (2006) 135 Cal.App.4th 1215, 1223, for the proposition that it need only find a position “at the same level” of Plaintiff’s pre-injury position is misplaced. The quoted language actually derives from *Hastings v. Department of Corrections* (2003) 110 Cal.App.4th 963, which explained that “the same level” limitation relates to the manner in which a disabled employee may be slotted into a different position: “consistent with the FEHA requirement that accommodation be measured by the requirements of the position for which accommodation is sought and the civil service provisions of the state Constitution, an employee is not entitled as an accommodation to reassignment to a position in a different civil service classification without complying with the competitive examination process of the civil service laws.” (*Id.* at 977.) In other words, there is no duty on the part of the employer to place a disabled employee into a different position if that position can only be acquired through a competitive civil service examination process. The plaintiff must still compete for the position. That is not an issue in the case at bar, as Plaintiff is not asking to skip testing/credentialing to go into a different position with the school.

There is also a flaw in the argument, as Defendant assumes that a substitute teaching or clerical position would be a “lower” position under the circumstances. A paraprofessional 1 is someone who may serve as a teacher assistant (helping teachers manage their students and the classroom) or as a one-on-one aide for a specific student with an IEP. While the position, if full-time and

tenured (Plaintiff actually only worked part-time), might be viewed by most as a “higher” job, a temporary clerical or teaching position could turn into a regular assignment, which many might view as “higher” than a paraprofessional. Either way, this is not a issue to be decided at summary judgment; rather, this represents an issue of fact for the ultimate trier of fact as to whether a temporary teacher is “at least equivalent to” a part-time paraprofessional.

There is no dispute that there was a vacant clerical substitute position open at the time Plaintiff returned to seek employment. (See AUMF 41.) To the extent Defendant contends that Plaintiff was not able to perform that job consistent with her work restrictions (Mihalevsky’s Decl. ¶ 6, 7 stating all open positions had physical requirements that conflicted with Plaintiff’s work restrictions), there is no evidence provided by the defense to show how or why that position was facially unsuitable for Plaintiff. (See AUMF 44-45.) Plaintiff presents undisputed evidence of her ability to perform that job. (See AUMF 47-49.) Plaintiff also presents evidence from which the trier of fact might conclude that her inquiries regarding substitute teacher were rebuffed for no good reason (according to Plaintiff, Defendant initially suggested that she could not serve as a substitute teacher due to her work limitations, but thereafter said it did not know Plaintiff had already passed the CBEST). (See AUMF 51-54.) There are triable issues of fact as to whether Defendant should have offered Plaintiff a substitute teaching position as well.

3. 3rd Cause of Action for Failure to Engage in Interactive Process – MSA Denied

The moving party has met its initial burden of proof by negating one of the essential elements, but Plaintiff has demonstrated the existence of a triable fact.

Under FEHA, it is an unlawful practice for an employer to fail to engage in a good faith interactive process with the employee to determine an effective reasonable accommodation if an employee with a known physical disability requests one. (Govt. Code §12940(n).) Failure to accommodate and failure to engage in the interactive process are separate, independent claims involving different proof of facts. The purpose of the interactive process is to determine what accommodation is required. Thus, an employer cannot be held liable for failing to engage in the interactive process when the employee was in fact offered a reasonable accommodation. Likewise, an employer cannot be held liable for failure to engage in the interactive process where the employee is unable to identify a reasonable accommodation that would have been available had the parties engaged in the interactive process. (*Miller v. Department of Corrections & Rehabilitation* (2024) 105 Cal.App.5th 261, 281-282; *Brown v. Los Angeles Unified School Dist.* (2021) 60 Cal.App.5th 1092, 1109.)

For the same reasons set forth above, there are triable issues of fact as to whether Defendant engaged in a “good faith” interactive process since it appears that at least one, if not two, positions may have been available to Plaintiff and it was incumbent upon Defendant to at least offer them to Plaintiff and allow her to accept or reject. While Defendant contends that it did, by inference, offer to Plaintiff at least one of the two positions and it was decided that she could not do that job, Plaintiff offers a competing view of what took place in the meeting. There is no writing memorializing any agreement between the parties that the clerical or teaching positions

would not be feasible, and as such it remains a triable issue of fact as to which person present in the meeting is more believable: Plaintiff or Marina Mihalevsky.

4. 4th Cause of Action for FEHA Retaliation – MSA Granted

The moving party has met its initial burden of proof by negating one of the essential elements, and Plaintiff has failed to demonstrate the existence of a triable fact.

To establish a prima facie case of retaliation under FEHA, an employee must show that (1) she engaged in a protected activity, (2) the employer subjected her to an adverse employment action, and (3) a causal link existed between the protected activity and the employer's action. (*Bailey v. San Francisco Dist. Attorney's Office* (2024) 16 Cal.5th 611, 636; *Light v. Department of Parks & Recreation* (2017) 14 Cal.App.5th 75, 91.) Retaliation generally requires proof that the plaintiff “has opposed any practices forbidden under [FEHA] or because the person has filed a complaint, testified, or assisted in any proceeding under [FEHA].” There is no evidence that Plaintiff engaged in protected activity, to wit: opposed any acts made unlawful under FEHA. Although it is unlawful for an employer to “retaliate or otherwise discriminate against a person for requesting accommodation” (Govt. Code §12940(m)(2)), and that some courts have concluded that making the request for an accommodation *is* the protected activity (see *Zamora v. Security Industry Specialists, Inc.* (2021) 71 Cal.App.5th 1, 67), there must still be causal nexus between the making of the request for accommodation and some kind of adverse employment action constituting retaliation. (See *Yanowitz, supra*, at 1042.) Plaintiff has not shown any conduct by Defendant taken against Plaintiff *on account of* her request for accommodation. In fact, her request for accommodation was apparently met with a timely response that simply failed to consider some other options. The fact that Plaintiff was dissatisfied with the interactive process, and feels as though some accommodation was available at the time, this is not sufficient to show adverse employment action because (1) being placed on the reemployment list is not adverse, and (2) Plaintiff was already “unemployed” as soon as her leave expired. (See, e.g., *Dinslage v. City and County of San Francisco* (2016) 5 Cal.App.5th 368, 382-383; *Quesada v. Albertson's LLC*, WL2176512 at *14 (C.D. Cal. 2022).)

5. 5th Cause of Action for “Failure to Maintain Discrimination-Free Environment” – MSA Granted

The moving party has met its initial burden of proof by negating one of the essential elements, and Plaintiff has failed to demonstrate the existence of a triable fact.

Since Plaintiff has failed to show a discriminatory environment at all, her derivative claim for failing to prevent it fails as a matter of law.

Conclusion:

Defendant’s motion for summary judgment is DENIED.

Defendant’s motion for summary adjudication is GRANTED as to the first, fourth, and fifth causes of action, and DENIED as to the second and third causes of action.